

Tentative Rulings and Resolution Review Hearings

May 26, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

IN RE: CLAREY

CASE NUMBER: 26CV-0210037

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Proof of Unsuccessful Service was filed on March 27, 2026. Additionally, proof of publication is required before the Court can consider granting the Petition. The Court intends to continue the hearing to a date that allows for sufficient time for service and publication. **An appearance by Petitioner is necessary on today's calendar.**

GARCIA-BROWER VS. SHACK, INC.

CASE NUMBER: 25CV-0209453

Tentative Ruling on Petition to Compel Witness to Respond to Investigative Subpoena: Petitioner Lilia Garcia-Brower, Labor Commissioner, seeks an order compelling Respondent Shack, Inc. to respond to an Investigative Subpoena issued by the State of California, Department of Industrial Relations Division of Labor Standards Enforcement (DLSE) on October 21, 2025. Petitioner has provided evidence that a valid Investigative Subpoena issued and that enforcement of the subpoena falls within the jurisdiction of this Court. Notice of Order to Show Cause Hearing Re Petition to Compel Witness to Respond to the Investigative Subpoena Issued by the Labor Commissioner and Order to Show Cause was executed by the Court on March 16, 2026. The Order was personally served on Respondent through the Agent for Service of Process on March 27, 2026. Additionally, the owner of Respondent business has been personally served. Respondent has provided no written response to the Order to Show Cause. **An appearance by both parties is necessary on today's calendar. Should Respondent not appear, Petitioner should be prepared present the Court with any additional orders Respondent requests pursuant to Gov. Code § 11188.**

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

CASE NUMBER: CVPO21-0198083

Tentative Ruling on Motion to Quash Deposition Subpoenas: Non-party Deponents Antonio Gambino, Teresa Chupp, and Deborah Olsen move to quash deposition subpoenas issued by Plaintiffs. The non-party deponents are represented by the Attorney General of California. The motion is opposed by Plaintiffs, who issued the deposition subpoenas. As a preliminary matter, the Court finds that non-party deponents have standing to move to quash deposition subpoenas issued to them.

The Attorney General has established that the deponents, while state employees, were performing a federal function in conducting the investigations. *Decl. Gilchrist*, ¶ 3. Plaintiffs have presented no evidence to the contrary.

No employee or former employee of the DHHS may provide testimony or produce documents in any proceedings to which this part applies concerning information acquired in the course of performing official duties or because of the person's official relationship with the Department unless authorized by the Agency head pursuant to this part based on a determination by the Agency head, after consultation with the Office of the General Counsel, that compliance with the request would promote the objectives of the Department.

45 C.F.R. § 2.3.

The Agency head for Centers for Medicare and Medicaid Services (“CMS”) is the Administrator. 45 C.F.R. § 2.2(7). Here, the deponents move to quash the subpoenas and ask that Plaintiffs proceed with the standard procedure of seeking authorization from the head of DHHS, which is exactly what Plaintiffs did when they deposed Joanne Gilchrist last year. While Plaintiffs argue that “DHHS eventually agreed with plaintiffs position and withdrew their objections to the deposition of Ms. Gilchrist,” the letter attached as Exhibit A makes it clear that authorization was granted under 45 C.F.R. § 2.3. While the Court sympathizes with Plaintiffs in the urgency given the upcoming trial date, there is nothing before the Court that leads the Court to find that these subpoenas are not subject to the federal prohibition. The subpoenas issued clearly seek information regarding investigations conducted for CMS, which is a federal agency.

The motion to quash is **GRANTED**. The moving parties did not provide a proposed Order as required by Local Rule of Court 5.17(D). The Attorney General is to prepare the Order.

IN RE: HOWE

CASE NUMBER: 26CV-0209893

Tentative Ruling on Petition for Change of Name: Petitioner Sharon Elizabeth Howe seeks to change her name to Sharon Rose-Elizabeth Howe. The matter was originally on calendar for hearing on April 27, 2026 and the matter was continued for Petitioner to file the original Certificate of Publication, which has not been filed. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the original Certificate of Publication (not a copy) is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: JESSUP

CASE NUMBER: 26CV-0210019

Tentative Ruling on Petition for Change of Name: Petitioner Micheal Joseph Jessup seeks to change his name to Michael Joseph Jessup. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

PARRISH VS. ALLIANCE RV, LLC, ET AL.

CASE NUMBER: 25CV-0207009

Tentative Ruling on Motion for Summary Judgment or Adjudication: In Case No. 200709 Defendants RV Retailer Idaho, LLC dba Blue Compass RV and Alliance RV, LLC filed a joint Motion for Summary Judgment on December 17, 2025 that was noticed for March 9, 2026. On January 30, 2026, the parties in Case Nos. 207009 and 208691 filed a joint stipulation to consolidate the two matters. The accompanying Order was executed on February 4, 2026 and continued the March 9, 2026 hearing to May 26, 2026. Plaintiff has not filed an Opposition to the motion and there is nothing before the Court to indicate that Plaintiff was provided proper notice of the

May 26, 2026 hearing. The February 4, 2026 Order only lists Defendant RV Retailer Idaho, LLC on the front page and a conformed copy was provided to Defendant RV Retailer Idaho, LLC's fax filing agency. Notice of Entry of Order has not been filed. A proof of service for the Order has not been filed. With no Opposition and no Proof of Service reflecting that Plaintiff was properly noticed of today's hearing date, the matter cannot proceed to hearing. **An appearance is necessary on today's calendar to discuss whether Plaintiff was provided notice of today's hearing and if so, how long Defendants will need to file the Proof of Service.**

WILSON VS. FORD MOTOR COMPANY, ET AL.

CASE NUMBER: 24CV-0205243

Tentative Ruling on Motion for Summary Adjudication: Defendant Ford Motor Company ("Ford") moves for summary adjudication on five separate issues related to three of Plaintiff's causes of action. Plaintiff Sarah Wilson opposes the motion.

The specific issues presented for summary adjudication (as argued by Defendant) are:

1. Plaintiff cannot establish that her second cause of action for violation of Civil Code § 1793.2(B) because she cannot establish that any repair took longer than 30 days to complete.
2. Plaintiff cannot establish her third cause of action for violation of Civil Code § 1793.2(A)(3) because she cannot establish that Ford failed to make available to authorized service and repair facilities sufficient services literature and replacement parts.
3. Plaintiff cannot establish her fifth cause of action for fraudulent inducement-concealment against Ford because Plaintiff cannot establish that Ford had knowledge of a defect at the time of sale.
4. Plaintiff cannot establish her fifth cause of action because Plaintiff cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale.
5. Plaintiff cannot establish her fifth cause of action because it is barred by the economic loss rule.

Evidentiary Objections. CRC 3.1354(b) requires that "[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." Defendant has not submitted objections separately as required by CRC 3.1354(b). Additionally, the objections are being made in the separate statement to the purported undisputed facts but have not been made to specific evidence. The objections are overruled for noncompliance with CRC 3.1354(b).

Merits. "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." CCP § 437c(f)(2).

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

CCP § 437c(f)(1).

A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.

Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

CCP § 437c(p)(2).

Issue 1. *Plaintiff cannot establish that her second cause of action for violation of Civil Code § 1793.2(B) because she cannot establish that any repair took longer than 30 days to complete.*

Civil Code § 1793.2(b) provides that repairs must be commenced within a “reasonable time,” and the goods shall be serviced or repaired to conform to the applicable warranties within 30 days. Defendant argues that Plaintiff cannot establish that any repair took more than 30 days to complete. Defendant fails to point to any undisputed facts applicable to this allegation. Defendant did provide evidence in form of repair orders that show no single repair took more than 30 days to complete. Defendant has met its initial burden that there is no triable issue of fact regarding violation of Civil Code § 1793.2(b). The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact.

While Plaintiff argues that Defendants did not “provide any admissible evidence addressing that it failed to commence repairs within a reasonable time or that Defendant’s authorized repair facilities actually fixed all nonconformities to applicable warranties”, Plaintiff has failed to affirmatively meet its burden to present any evidence that a triable issue of fact exists regarding violation of Civil Code § 1793.2(b). Summary Adjudication is therefore **GRANTED** as to Issue 1.

Issue 2. *Plaintiff cannot establish her third cause of action for violation of Civil Code § 1793.2(A)(3) because she cannot establish that Ford failed to make available to authorized service and repair facilities sufficient services literature and replacement parts.*

Civil Code § 1793.2(a)(3) states that every manufacturer who has made an express warranty shall “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” Defendant argues that Plaintiff has failed to provide any facts or evidence to support that Defendant failed to comply with Civil Code § 1793.2(a)(3). The closest material fact provided by Defendant was number 19 of Defendant’s separate statement, which states that Plaintiff directed Defendant to the Complaint and page 28 of her document production when asked to “IDENTIFY all facts that support YOUR contention that “Defendant FMC’s failure to comply with its obligations under Civil Code Section 1793.2(a)(3) was willful, in that Defendant FMC knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant FMC failed to take any action to correct its failure to comply with the law” as alleged in Paragraph 50 of YOUR COMPLAINT.”

Neither “Willfulness” nor “knowledge” of the obligation to supply sufficient literature and replacement parts are elements of proper compliance with Civil Code § 1793.2(a)(3). These assertions are not sufficient to show that Plaintiff cannot establish that Defendant failed to comply with Civil Code § 1793.2(a)(3). Defendant has failed to provide evidence that shows compliance with the requirements. Defendant has not met its initial burden that a triable issue of fact does not exist regarding violation of Civil Code § 1793.2(1)(3). Summary Adjudication is **DENIED** as to Issue 2.

Issues 3-5 regarding the Fifth Cause of Action for Fraudulent Inducement-Concealment. Fraud in the inducement occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present

and a contract is formed, which, by reason of the fraud, is voidable. *Duffens v. Valenti* (2008) 161 Cal. App. 4th 434, 449. The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]. *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Issue 3. Plaintiff cannot establish her fifth cause of action for fraudulent inducement-concealment against Ford because Plaintiff cannot establish that Ford had knowledge of a defect at the time of sale.

Defendant argues that Plaintiff cannot establish that Defendant was aware of the alleged defect at the time of sale. Defendant provided evidence in the form of Plaintiff's deposition that shows when asked, "Do you have any information to suggest that Ford probably knew of issues?" Plaintiff replied, "No. I have no information." Defendant has met its initial burden that there is no triable fact as to Defendant's prior knowledge of the alleged defect. The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact.

Plaintiff's counsel provided a declaration and evidence regarding Defendant's prior knowledge of the alleged defect including Technical Service Bulletins dating before the sale of the vehicle and email exchanges between alleged Ford employees regarding issues related to the 10R80 transmissions. Plaintiff has established a triable issue of fact regarding Defendant's prior knowledge of the alleged defect. Summary Adjudication is **DENIED** as to Issue 3.

Issue 4. Plaintiff cannot establish her fifth cause of action because Plaintiff cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale.

Defendant argues that dealerships are not agents of the manufacturer, therefore no transactional relationship exists between Plaintiff and Defendant Ford giving rise to a duty to disclose. In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Defendant has provided evidence in the form of a Retail Installment Sale Contract that shows Plaintiff purchased the subject vehicle from Crown Ford, an authorized Ford dealership. The Complaint shows that the purchase was supported by an express warranty backed by Defendant Ford. Under *Dhital*, it is undisputed that a transactional relationship exists. Defendant has not met its initial burden that a triable issue of fact regarding the existence of a transactional relationship. Summary Adjudication is **DENIED** as to Issue 4.

Issue 5. Plaintiff cannot establish her fifth cause of action because it is barred by the economic loss rule.

Defendant argues that the cause of action for fraudulent inducement-concealment is barred by the economic loss rule. Concerning contracts, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905. However, "[t]ort damages have been permitted in contract cases where a breach of duty directly causes physical injury [citation]; for breach of the covenant of good faith and fair dealing in insurance contracts [citation]; for wrongful discharge in violation of fundamental public policy [citation]; or where the contract was fraudulently induced. [Citation.]" *Robinson Helicopter Co., Inc. v. Dana Corp.* (204) 34 Cal.4th 979.

The *Robinson* court specifically noted an exception for claim in which one is fraudulently induced into entering

a contract, which is specifically different from fraudulent performance of a contract. This was further affirmed in *Dhital v. Nissan North America*, supra, 84 Cal.App.5th 828, which determined that “[f]raudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court.” The facts of *Dhital* are approximate to the facts presented in this case, in which Plaintiff’s claimed they were fraudulently induced into entering a contract through Nissan’s fraudulent concealment of an alleged transmission defect. Here, Plaintiff claims that entry into the contract was fraudulently induced by Defendant’s concealment of an alleged transmission defect, which falls squarely within the exception to the economic loss rule. Defendant has failed to meet its initial burden. Summary Adjudication is **DENIED** as to Issue 5.

In summary, summary adjudication is **DENIED** as to Issues 2, 3, 4 and 5. Summary adjudication is **GRANTED** as to Issue 1. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant shall prepare the Order.

9:00 a.m. – Review Hearings

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. While a Motion to be Relieved was granted on April 27, 2026, Plaintiff’s counsel has not filed a Notice of Entry of Order and is therefore not relieved. Plaintiff’s counsel was ordered to provide notice of today’s hearing to all parties. There is nothing in the file to indicate that Plaintiff’s counsel did so. **An appearance is necessary on today’s calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of CCP § 664.6 dismissal. Plaintiff filed a status statement informing the Court that an agreement has been reached and a stipulation is being distributed to all parties for signature. Plaintiff requests 90 days to file the stipulation. This is essentially the same information provided the last time Plaintiff requested a continuance. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The parties are ordered to take the necessary steps to close the court file, i.e. a dismissal with a CCP § 664.6 retention. If the matter has not been dismissed prior to the next hearing, the Court orders Plaintiff to file a status statement explaining the delay at least five court days prior to the hearing. **No appearance is necessary on today’s calendar.**

EL RIO ESTATES LLC VS. JOHNSON-SARGENT, ET AL.

CASE NUMBER: 26CVG-00088

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code § 798.61. The clerk is directed to close the file. **No appearance is necessary on today’s calendar.**

KNIGHT VS. HIGHWAY SPECIALTY COMPANY INC

CASE NUMBER: 24CV-0206254

This matter is on calendar for status of arbitration. Plaintiff previously informed the Court that Plaintiff intends to file a demand for arbitration. At the last hearing on April 27, 2026, both parties were ordered to file a status statement at least five days prior to today’s hearing. Nothing has been filed since the last hearing. **An appearance is necessary on today’s calendar.**

LINDLER, ET AL. VS. THOMPSON, ET AL.

CASE NUMBER: 23CV-0203385

This matter is on calendar for review regarding status of dismissal. At the last hearing on February 23, 2026, the Court issued a tentative ruling explaining that the court does not have the staffing to monitor the case until 2030 to ensure closure of the court file and also noting that a dismissal in 2030 would be past the five-year deadline to bring the matter to trial. The parties were ordered to either submit a stipulation and order for a dismissal pursuant to CCP § 664.6 or file a Request for Dismissal prior to today's hearing. Nothing has been filed since the last hearing. **An appearance is necessary on today's calendar.**

LIU, ET AL. VS. MONTES, ET AL.

CASE NUMBER: 24CV-0205512

This matter is on calendar for review regarding status of dismissal. Plaintiffs filed a status statement providing the Court with the explanation for the delay. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of dismissal. If the matter is not dismissed by the next hearing, Plaintiffs are ordered to file a status statement with an update regarding the liens no less than five court days prior to the next hearing. **No appearance is necessary on today's calendar.**

RHYNE VS. SASD REDDING PARTNERS, LLC

CASE NUMBER: 24CVG-00955

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on November 25, 2025 which indicates that the case would be dismissed no later than January 31, 2026. This is the fourth review hearing since the Notice of Settlement was filed. At the last hearing on May 4, 2026, Plaintiff was ordered to file a status statement no less than five court days prior to today's hearing. A status statement has not been filed. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to dismiss the matter without prejudice pursuant to CRC 3.1385(c)(2).**

SAFECO INSURANCE COMPANY OF AMERICA VS. WINTERS, ET AL.

CASE NUMBER: 25CV-0208237

This matter is on calendar for review regarding status of responsive pleading. The Court notes that Defendant Gregory Winters, Individually and a Trustee of the Slavich Christie Marie Special Needs Trust filed an Answer on April 15, 2026. Defendant Christie Marie Slavich has not been served and has not appeared. **An appearance is necessary on today's calendar.**

WILKINSON VS. WILKINSON, ET AL.

CASE NUMBER: 23CV-0202523

This matter is on calendar for review regarding status of the probate matter. Defendant/Cross-Complainant filed a status statement informing the Court that letters have issued in the probate case in Humboldt County. Despite being ordered to do so, Cross-Defendant Teresa Malcolm did not file a status report. **An appearance is necessary on today's calendar.**